NCA
NEWTOWN CREEK ALLIANCE

June 2, 2021

VIA ELECTRONIC FILING

Hon. Michelle Phillips
Secretary
New York State Public Service Commission
Three Empire State Plaza
Albany, New York 12223-1350

Case 19-G-0309 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.
Case 19-G-0310 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corp. d/b/a National Grid for Gas Service.

Dear Secretary Phillips:
The Newtown Creek Alliance is opposed to the Joint Proposal for filing in the above-referenced proceedings for the following reasons:

1. The Proposal does not take appropriate actions in reducing fossil fuel consumption in New York City and Long Island. The actions that are currently being undertaken by the Company and are part of this rate case, namely the construction of the Metropolitan Reliability Infrastructure project and LNG Greenpoint Vaporizers 13 and 14, only further a dependence on natural gas in the decades to come. We firmly believe in the climate change goals set forth by New York City and New York State, and do not believe that this proposal meets those demands.
2. The Proposal puts an unjust financial burden on local ratepayers who have historically been exposed to potential environmental harms relating to the siting of the Greenpoint Energy Center facility. Our communities already pay a price that National Grid has forced upon us, with soil and groundwater contamination (including Benzene, Toluene, Ethylbenzene and Xylene (BTEX); Semivolatile Organics: Polycyclic aromatic hydrocarbon (PAHs); and Polychlorinated biphenyl (PCBs); a federally designated Superfund waterway in our backyard (of which the Company was an original potentially responsible party); and air emissions of greenhouse gases and Nitrous Oxides from the Greenpoint facility. It is unconscionable to make these local rate payers also pay for the expansion of the Company's fossil fuel infrastructure.
3. The Newtown Creek biogas purification project utilizes NYC wastewater infrastructure to create a cleaner and more local source of natural gas. While we believe there is significant potential in advancing this technology at existing wastewater treatment plants, we are opposed to the Company recovering their own costs for this project from local rate payers who have been impacted by the siting of the City's largest wastewater treatment plant; the increased air emissions from the facility since the construction of the project began (original completion was 2019, and the project is still not operational); and are impacted by the local truck traffic delivering bioslurry to the treatment facility.

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For the reasons listed here, as well as those submitted by numerous other parties, we ask that you reject the Joint Proposal.

Sincerely,

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About NCA:
The Newtown Creek Alliance (http://www.newtowncreekalliance.org/) is a community-based organization dedicated to restoring, revealing and revitalizing Newtown Creek in the boroughs of Queens and Brooklyn. We represent the interests of community residents and local businesses that are dedicated to restoring community health, water quality, habitat, access and vibrant, water-dependent commerce along Newtown Creek. NCA works to restore the Creek by securing mitigation and remediation of known environmental hazards – both in the neighborhoods surrounding Newtown Creek and in Newtown Creek itself – reporting ongoing sources of pollution and preventing new pollution. To restore the ecological functions of the waterway, NCA supports investments in green infrastructure, bioremediation, and habitat restoration. We help revitalize watershed communities by playing a leadership role in area-wide brownfield redevelopment planning, creating programs that improve the environmental profile of industrial businesses and engaging in workforce development to create local green jobs. Our work supports environmental, economic and human health.

cc: Administrative Law Judge Maureen Leary (via e-mail; w/ att.)
Administrative Law Judge James Costello (via e-mail; w/ att.)
All parties (via e-mail; w/ att.)